The Honorable Barbara J. Rothstein

UNITED STATES DISTRICT COURT
FOR THE WESTERN DISTRICT OF WASHINGTON
AT SEATTLE

MICHAEL BROCK, et al, Plaintiffs, v. CITY OF BELLINGHAM AND MAYOR SETH FLEETWOOD, Defendants.	CASE NO. 2:24-CV-850-BJR **DEFENDANTS CITY OF BELLINGHAM'S AND SETH FLEETWOOD'S MOTION TO DISMISS** NOTED FOR CONSIDERATION: MONDAY, SEPTEMBER 23, 2024

I. INTRODUCTION

Plaintiffs—former[1] City of Bellingham ("City") employees who declined to receive the COVID-19 vaccine—bring this action against the City and former City Mayor Seth Fleetwood (collectively "Defendants") challenging the City's mandate requiring vaccination against COVID-19 as condition of continued employment. Plaintiffs raise 11 causes of action under federal and state law, all of which fail as a matter of law. Because amendment of Plaintiffs' claims would be futile, the Court should dismiss this action with prejudice.

II. STATEMENT OF FACTS[2]

In response to the COVID-19 pandemic, "[g]overnments at all levels instituted restrictions to curb the transmission of the virus." *Slidewaters LLC v. Wash. Dep't of Labor & Indus.*, 4 F.4th

[1] One Plaintiff is a current employee. For purposes of this motion to dismiss, Defendants accept as true the allegations as pled.

[2] This factual summary is based on allegations in the Amended Complaint, documents attached to the Amended Complaint, and judicially noticeable facts. *Tellabs, Inc. v. Makor Issues & Rights, Ltd.*, 551 U.S. 308, 322 (2007). Defendants ask the Court to take judicial notice of the government

SUMMIT LAW GROUP, PLLC
315 FIFTH AVENUE SOUTH, SUITE 1000
SEATTLE, WASHINGTON 98104-2682
Telephone: (206) 676-7000
Fax: (206) 676-7001

747, 752 (9th Cir. 2021), *cert. denied*, 142 S. Ct. 779 (2022). On February 29, 2020, Governor Jay Inslee proclaimed a state of emergency in Washington. *Id.* at 753. Between December 2020 and February 2021, the FDA issued Emergency Use Authorizations (EUAs) for COVID-19 vaccines developed by Pfizer, Moderna, and Johnson & Johnson. *Church v. Biden*, No. 21-2815 (CKK), 2022 WL 1491100, at *2 (D.D.C. May 11, 2022). On August 23, 2021, the FDA gave full approval to Pfizer's vaccine, marketed as "Comirnaty," for people 16 years and older. *Id.*

The CDC considers the vaccines safe and effective at reducing the risk of severe illness or death due to COVID-19.[3] And while "no vaccine is 100% effective," COVID-19 vaccines have proven highly effective at preventing the virus's spread and severe disease. *Mass. Corr. Officers Federated Union v. Baker*, 567 F. Supp. 3d 315, 319–20 (D. Mass. 2021).[4] To facilitate the administration of the vaccines, the CDC entered into COVID-19 Vaccination Provider Agreements ("Provider Agreements") with healthcare providers in the various states, including Washington. Dkt. 10 ¶¶ 36–37; Dkt. 10-3.

The summer of 2021 saw the emergence of a highly contagious COVID-19 variant referred to as the "Delta" variant. *Does 1–6 v. Mills*, 16 F.4th 20, 2627 (1st Cir. 2021), *cert. denied sub nom. Does 1–3 v. Mills*, 142 S. Ct. 1112 (2022). COVID cases, hospitalizations, and deaths rose sharply. *Curtis v. Inslee,* No. 3:23-CV-05741-RJB, 2023 WL 8828753, at *2 (W.D. Wash. Dec. 21, 2023). On August 9, 2021, Governor Inslee issued Proclamation 21-14 ("Proclamation") requiring as a condition of employment certain state employees to be fully vaccinated against

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records and data cited herein, as well as that cited in court opinions cited herein. *See* Fed. R. Evid. 201; *King v. Cnty. of L.A.*, 885 F.3d 548, 555 (9th Cir. 2018).

[3] CDC, *Overview of COVID-19 Vaccines* (May 23, 2023), https://archive.cdc.gov/#/details?url=https://www.cdc.gov/coronavirus/2019-ncov/vaccines/different-vaccines/overview-COVID-19-vaccines.html.

[4] *See also CDC, Morbidity and Mortality Weekly Report (MMWR)* (Sept. 17, 2021), http://bit.ly/3YQ9tMM (noting that at the relevant time, unvaccinated people were 5 times more likely to contract, 10 times more likely to be hospitalized with, and 10 times more likely to die from COVID- 19 than those who were fully vaccinated).

SUMMIT LAW GROUP, PLLC
315 FIFTH AVENUE SOUTH, SUITE 1000
SEATTLE, WASHINGTON 98104-2682
Telephone: (206) 676-7000
Fax: (206) 676-7001

COVID-19 by October 18, 2021, unless they qualified for medical or religious exemptions and received a reasonable accommodation. *Id.* On September 21, 2021, the Mayor announced by Executive Order 2021-01 ("Order") the City's own COVID-19 vaccination mandate, requiring all City employees, volunteers, and on-site indoor contractors to be fully vaccinated against COVID-19 by December 3, 2021 to continue working for the City. Dkt. 10-1.

The Order recognized the sharp increase in COVID-19 cases caused by the Delta variant, that "COVID-19 vaccines are effective in reducing serious disease and hospitalizations," and that "widespread vaccination [was] the primary means available to the City to protect its employees and the public," including vulnerable populations. Dkt. 10-1 at 1–2. The Order defined "fully vaccinated" as having received the Pfizer, Moderna, or Johnson & Johnson vaccines, *id.* at 4, and noted that the Pfizer vaccine had received full FDA approval, *id.* at 2. Finally, the Order permitted employees to seek exemptions for legitimate medical reasons or sincerely held religious beliefs and provided that requests for accommodations would be evaluated on an individual basis. *Id.* at 4.

On June 13, 2024,[5] Plaintiffs filed this action against the City and Defendant Fleetwood in his individual and official capacities. Dkt. 10 ¶¶ 13–13.2. Plaintiffs bring § 1983 claims contending the Order violated their procedural and substantive due process rights, the Equal Protection Clause, and the Unconstitutional Conditions Doctrine, and alleging that the City is liable for these deprivations under *Monell*.[6] Dkt. 10 ¶¶ 185–288. Plaintiffs further allege the Order deprived them of the "option to refuse" investigational medical products, contrary to the Emergency Use Authorization Act, 21 U.S.C. § 360bbb-3 ("EUA Act"); and in violation of the Food, Drug, and Cosmetic Act, 21 U.S.C. §§ 331 & 333 ("FDCA") and the Public Readiness and Emergency Preparedness Act, 42 U.S.C § 247d-6d *et seq*. ("PREP Act"). *Id.* ¶¶ 171–84. Finally, Plaintiffs bring state law claims for wrongful termination in violation of public policy and

[5] On June 30, 2024, Plaintiffs filed an Amended Complaint for the sole purpose of adding an additional plaintiff. Dkt. 10 ¶ 19. This motion cites to the Amended Complaint throughout.

[6] *See Monell v. Dep't of Soc. Servs. of City of New York*, 436 U.S. 658 (1978).

SUMMIT LAW GROUP, PLLC
315 FIFTH AVENUE SOUTH, SUITE 1000
SEATTLE, WASHINGTON 98104-2682
Telephone: (206) 676-7000
Fax: (206) 676-7001

intentional infliction of emotional distress. *Id.* ¶¶ 289–97. Plaintiffs seek compensatory, general, and punitive damages. *Id.* ¶¶ 298–304. Defendants move to dismiss all claims against them.

III. ARGUMENT AND AUTHORITY

A. Legal Standard

To survive a motion to dismiss for failure to state a claim under Federal Rule of Civil Procedure 12(b)(6), "a complaint must contain sufficient factual matter, accepted as true, to state a claim to relief that is plausible on its face." *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009) (cleaned up). "A claim has facial plausibility when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged." *Id.* Whether a complaint states a claim for relief "requires the reviewing court to draw on its judicial experience and common sense." *Id.* at 679. "[T]he court need not accept as true 'allegations that contradict matters properly subject to judicial notice.'" *St. Clare v. Gilead Scis., Inc.*, 536 F.3d 1049, 1055 (9th Cir. 2008). Nor need the Court accept as true "unreasonable inferences or conclusory legal assertions cast in the form of factual allegations." *Harris v. U.S. BankCorp*, 2:19-CV-00291-BJR, 2019 WL 5536402, at *2 (W.D. Wash. Oct. 25, 2019) (citing *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 553–56 (2007)). Dismissal may be based on either the "lack of a cognizable legal theory or absence of sufficient facts alleged under a cognizable legal theory." *Conservation Force v. Salazar*, 646 F.3d 1240, 1242 (9th Cir. 2011).

B. Plaintiffs' § 1983 Claims Fail.

Plaintiffs § 1983 claims, alleging violations of constitutional and purportedly statutory rights, fail to state a claim. The Court should dismiss them in their entirety.

1. Plaintiffs' "Deprivation of the Option to Refuse" Claim Fails (Count 1).

a. The COVID-19 Vaccine is Not an "Investigational Drug."

Plaintiffs contend they were deprived of their "option to accept or refuse administration" of "investigational drugs" under the EUA Act. Dkt. 10 ¶¶ 171–84. Plaintiffs' contention necessarily fails because the COVID-19 vaccine is not an "investigational drug."

SUMMIT LAW GROUP, PLLC
315 FIFTH AVENUE SOUTH, SUITE 1000
SEATTLE, WASHINGTON 98104-2682
Telephone: (206) 676-7000
Fax: (206) 676-7001

The Pfizer vaccine, which was indisputably available to Plaintiffs before the Order's December 3, 2021 vaccination deadline, was not "investigational" for the purposes of the EUA Act, but instead was fully approved by the FDA. *See, e.g.*, *Church*, 2022 WL 1491100, at *2. Plaintiffs admit the FDA licensed the Pfizer Comirnaty vaccine—"the same formulation as the Pfizer" vaccine, Dkt. 10-5 at 2—"for general commercial marketing on August 23, 2021[,]" Dkt. 10 ¶ 77. Plaintiffs contend, however, that "Pfizer informed the CDC that . . . it would continue to use its investigational version under the federal CDC program[,]" suggesting no non-investigational drugs were available to Plaintiffs. *Id*; *see also id.* ¶ 87 ("The FDA informed Defendants that while Pfizer's COVID-19 drugs were medically interchangeable, they were 'legally distinct.'"); *id.* ¶ 174 ("At all times material, Defendants neither procured an FDA-licensed vaccine nor informed Plaintiffs where, when, and how to obtain an FDA-licensed vaccine to comply with the Policy.").

Numerous courts have rejected the contention that any distinction between the EUA Pfizer and Pfizer Comirnaty vaccines can give rise to a valid claim—"the Pfizer[] and Comirnaty vaccines were identical in all but name." *Roberts v. Inslee*, No. 23-0295-TOR, 2024 WL 1160895, at *4 (E.D. Wash. Mar. 18, 2024); *see also Curtis*, 2023 WL 8828753, at *2 (taking judicial notice that the Pfizer vaccine was approved on August 23, 2021). The Court can and should disregard allegations contending no non-investigational vaccines were available to Plaintiffs as contrary to clear, judicially noticeable facts. *St. Clare*, 536 F.3d at 1055.

b. Plaintiffs Have Failed to Identify any Enforceable Federal Right.

Plaintiffs' claim also fails because they have not identified any federal right enforceable under § 1983. A violation of a federal statute does not automatically give rise to a claim under § 1983. Instead, "[i]n order to seek redress through § 1983, . . . a plaintiff must assert the violation of a federal *right*, not merely a violation of federal *law*." *Blessing v. Freestone*, 520 U.S. 329, 340 (1997) (emphasis in original); *see also Gonzaga Univ. v. Doe*, 536 U.S. 273, 283 (2002). To "sustain a § 1983 action, the plaintiff must demonstrate that the federal statute creates an

SUMMIT LAW GROUP, PLLC
315 FIFTH AVENUE SOUTH, SUITE 1000
SEATTLE, WASHINGTON 98104-2682
Telephone: (206) 676-7000
Fax: (206) 676-7001

individually enforceable right in the class of beneficiaries to which he belongs." *City of Rancho Palos Verdes, Cal. v. Abrams*, 544 U.S. 113, 120 (2005). Where the text and structure of a statute provide no indication that Congress intended to create new individual rights, there is no basis for a private suit under § 1983 or otherwise. *Gonzaga Univ.*, 536 U.S. at 283–86.

Here, Plaintiffs assert purported rights under the EUA Act, the PREP Act, the FDCA, the "Provider Agreement," and the Supremacy Clause.[7] *See* Dkt. 10 ¶¶ 171–84. Because none of these authorities contain a private right of action enforceable by Plaintiffs under § 1983, the Court should dismiss their claim.

(i) EUA Act and FDCA

Plaintiffs allege that in enacting the Order, Defendants exceeded their statutory and constitutional authority and unlawfully established prohibited acts under the EUA Act and the FDCA. *See* Dkt. 10 ¶¶ 171–84. But neither the FDCA nor the EUA Act, which is part of the FDCA, meet the "demanding bar" of § 1983 enforceability, and there is no private right of action to enforce either. *See, e.g.*, *PhotoMedex, Inc. v. Irwin*, 601 F.3d 919, 924 (9th Cir. 2010) (no private right of action exists to enforce the FDCA); *PDK Labs, Inc. v. Friedlander*, 103 F.3d 1105, 1113 (2d Cir. 1997) (same); *Curtis v. Inslee*, No. 23-5741-RJB, 2024 WL 810503, at *5 (W.D. Wash. Feb. 27, 2024) (EUA Act not enforceable pursuant to § 1983). Accordingly, Plaintiffs cannot bring a § 1983 claim to enforce either the EUA Act or the FDCA more broadly.

[7] Plaintiffs also make vague reference to 45 C.F.R. Part 46, the Belmont Report, and the International Covenant on Civil and Political Rights Treaty. *See, e.g.*, Dkt. 10 ¶ 16; *id.* ¶¶ 222, 225. None of these authorities are enforceable under § 1983, nor do they otherwise create a private right of action. *See Curtis*, 2023 WL 8828753, at *6, and cases cited therein. And Plaintiffs variably invoke Federal Wide Assurance and 10 U.S.C. § 980, neither of which are applicable. Federal Wide Assurance applies to institutions "engaged in research . . . [,]" 45 C.F.R. § 46.103(a), whereas 10 U.S.C. § 980 provides that "[f]unds appropriated to the Department of Defense may not be used for research involving a human being as an experimental subject . . . ." The Order involved no research whatsoever and Plaintiffs do not allege otherwise.

SUMMIT LAW GROUP, PLLC
315 FIFTH AVENUE SOUTH, SUITE 1000
SEATTLE, WASHINGTON 98104-2682
Telephone: (206) 676-7000
Fax: (206) 676-7001

(ii) PREP Act

Plaintiffs assert Defendants violated the PREP Act when enacting the Order. *See, e.g.*, Dkt. 10 ¶ 181. The PREP Act likewise does not confer an enforceable federal right on Plaintiffs. The only cause of action authorized by the PREP Act is "an exclusive Federal cause of action against a covered person for death or serious physical injury proximately caused by willful misconduct," in the authorization of certain "covered countermeasures," such as an EUA drug. 42 U.S.C. § 247d-6d(d)(1), (d)(2). Claims under the PREP Act must "be filed and maintained only in the United States District Court for the District of Columbia," and must be accompanied by a physician's affidavit and certified medical records documenting the alleged injury. 42 U.S.C. § 247d-6d(e)(1), (e)(4)(C). Plaintiffs have not alleged and cannot demonstrate any of these prerequisites, including that they suffered "death or serious physical injury." *See* 42 U.S.C. § 247d-6d(d)(1), (d)(2). And Plaintiffs have not filed suit in the DC District Court, the exclusive venue for a PREP Act claim. 42 U.S.C. § 247d-6d(e)(1). Given this, Plaintiffs cannot sustain a § 1983 claim predicated on alleged violations of the PREP Act. *See Curtis*, 2024 WL 810503, at *7.

(iii) Supremacy Clause

Plaintiffs allege the Order conflicts with the EUA Act and the PREP Act such that the Supremacy Clause preempts the Order. *See* Dkt. 10 ¶¶ 179, 181. To the extent Plaintiffs contend the Supremacy Clause creates § 1983 enforceable rights, they are mistaken.

"[T]he Supremacy Clause is not the source of any federal rights and certainly does not create a cause of action." *Armstrong v. Exceptional Child Ctr., Inc.*, 575 U.S. 320, 324–25 (2015) (cleaned up). Instead, the availability of a § 1983 remedy under the Supremacy Clause turns on whether the assertedly preempting statute, by its terms or as interpreted, itself creates federally enforceable rights in the plaintiff. *Golden State Transit Corp. v. City of Los Angeles*, 493 U.S. 103, 108 (1989). In other words, for a § 1983 action to lie, the federal statute at issue — here, the EUA Act and the PREP Act — must create a federal right. *See Wachovia Bank, N.A. v. Burke*, 414 F.3d 305, 321–22 (2d Cir. 2005). But as explained above, neither Act creates federally enforceable

SUMMIT LAW GROUP, PLLC
315 FIFTH AVENUE SOUTH, SUITE 1000
SEATTLE, WASHINGTON 98104-2682
Telephone: (206) 676-7000
Fax: (206) 676-7001

rights in Plaintiffs. The Court should reject Plaintiffs' attempt to use the Supremacy Clause as a vehicle for asserting a § 1983 claim predicated on non-existent rights under either statute. *Johnson v. Kotek*, 22-35624, 2024 WL 747022, at *2 (9th Cir. Feb. 23, 2024).

(iv) Provider Agreement

Plaintiffs contend Defendants' actions deprived Plaintiffs of their "option to refuse" under the Provider Agreement. Dkt. 10 ¶ 184. The Provider Agreement is not a source of federally enforceable rights because, among other reasons, it does not apply to Plaintiffs or Defendants. Instead, it is a contract between the CDC and healthcare providers who administer the COVID-19 vaccine. *See id.* ¶¶ 36–37; Dkt. 10-3. In other words, it creates obligations for vaccination providers to people to whom they administer COVID-19 vaccines. *Curtis*, 2024 WL 248719, at *8. Plaintiffs did not receive the COVID-19 vaccine and Defendants, who are not healthcare providers, did not administer it. Accordingly, Plaintiffs have no rights under the Provider Agreement and Defendants have not violated it. To the extent Plaintiffs assert a § 1983 claim pursuant to the Provider Agreement, their claim should be dismissed. *See Curtis*, 2023 WL 8828753, at *6 (dismissing "investigational drug use" claim brought against Inslee pursuant to the Provider Agreement because "there [was] no allegation that Gov. Inslee signed this agreement").

2. Plaintiffs' Substantive Due Process Claims Fail (Counts 4–6, 8).[8]

The Due Process Clause of the Fourteenth Amendment provides that no state shall "deprive any person of life, liberty, or property, without due process of law," U.S. Const. amend. XIV, § 1, and has both substantive and procedural applications. "Substantive due process protects individuals from arbitrary deprivation of their liberty by government." *Sylvia Landfield Tr. v. City of Los Angeles*, 729 F.3d 1189, 1195 (9th Cir. 2013). Only "the most egregious official conduct

[8] In alleging violations of their substantive due process rights, Plaintiffs cite the EUA Act, 10 U.S.C. § 980, 45 C.F.R. Part 46, and the PREP Act. *See* Dkt. 10 ¶¶ 219, 235. As stated above, none of these authorities give rise to federal rights enforceable by Plaintiffs. Section III.B.1.b, *supra*. Any attempt by Plaintiffs to recast their invalid claims under these statutes as substantive due process claims should be rejected. *See Curtis*, 2024 WL 810503, at *6.

SUMMIT LAW GROUP, PLLC
315 FIFTH AVENUE SOUTH, SUITE 1000
SEATTLE, WASHINGTON 98104-2682
Telephone: (206) 676-7000
Fax: (206) 676-7001

can be said to be arbitrary in the constitutional sense," *Cnty. of Sacramento v. Lewis*, 523 U.S. 833, 846 (1998) (cleaned up), and "the alleged deprivation must shock the conscience and offend the community's sense of fair play and decency," *Sylvia Landfield Tr.*, 729 F.3d at 1195 (cleaned up). "To establish a violation of substantive due process, a plaintiff must first show a deprivation of some fundamental right or liberty interest that is deeply rooted in this Nation's history and tradition." *Tutor-Saliba Corp. v. City of Hailey*, 452 F.3d 1055, 1061 (9th Cir. 2006) (cleaned up). Plaintiffs cannot do so.

a. Investigational Drug (Count 4)

Plaintiffs' first claim that their substantive due process rights were violated when they were deprived of the "fundamental right to refuse an investigational drug without penalty or pressure." Dkt. 10 ¶ 231. The COVID-19 vaccine is not an "investigational drug." Section III.B.1.a, *supra*. Thus, even assuming Plaintiffs can demonstrate that a substantive due process right to this exists (which they cannot), they cannot demonstrate that it was violated here.

b. PREP Act (Count 5)

Plaintiffs invoke the PREP Act in alleging violations of their substantive due process rights. Dkt. 10 ¶¶ 231–42. The exact nature of this claim is unclear; however, Congress has "evinced clear intent that § 1983 [is] not available to enforce rights under the PREP Act, *even federal constitutional claims*." *Curtis*, 2024 WL 810503, at *7 (citing *Maney v. Brown*, 91 F.4th 1296, 1303 n.3 (9th Cir. 2024) (emphasis added)). Thus, even if the PREP Act "unambiguously" conferred relevant rights on Plaintiffs, which it does not, Section III.B.1.b.ii, *supra*, Congress's intention to preclude constitutional claims based on the PREP Act bars this cause of action.

c. Unwanted Medical Treatment (Count 6)

Plaintiffs contend they have a fundamental right and constitutionally protected liberty interest to refuse unwanted medical treatment, and that Defendants violated this right when enacting and enforcing the Order. Dkt. 10 ¶¶ 247–48.

SUMMIT LAW GROUP, PLLC
315 FIFTH AVENUE SOUTH, SUITE 1000
SEATTLE, WASHINGTON 98104-2682
Telephone: (206) 676-7000
Fax: (206) 676-7001

In the context of vaccine mandates, courts have repeatedly rejected that the fundamental right at issue is refusing medical treatment, finding such arguments misplaced. *See, e.g.*, *Antunes v. Rector & Visitors of Univ. of Va.*, 627 F. Supp. 3d 553, 564 (W.D. Va. 2022); *Baker*, 567 F. Supp. 3d at 326 n.5; *Bauer v. Summey*, 568 F. Supp. 3d 573, 592 n.5 (D.S.C. 2021); *We the Patriots USA, Inc. v. Hochul*, 17 F.4th 266, 293–94 (2d Cir. 2021). The only purported interest Plaintiffs allege, then, is the "right to refuse" the COVID-19 vaccine, not the right to refuse unwanted medical treatment.[9] But "COVID-19 vaccine mandates do not implicate a fundamental right protected by the substantive due process clause." *Curtis*, 2023 WL 8828753, at *5, and cases cited therein; *Smith v. Biden*, No. 21-19457, 2021 WL 5195688, at *6 (D.N.J. Nov. 8, 2021), and cases cited therein.

Implicating no fundamental right, vaccine mandates are considered under rational basis review, which presumes a mandate's validity so long as it is "rationally related to a legitimate state interest." *City of Cleburne v. Cleburne Living Ctr.*, 473 U.S. 432, 440 (1985). The weight of authority has upheld COVID-19 vaccination mandates under this standard. *See, e.g.*, *Smith*, 2021 WL 5195688, at *6, and cases cited therein; *Valdez v. Grisham*, 559 F. Supp. 3d 1161, 1176 (D.N.M. 2021), *aff'd*, 21-2105, 2022 WL 2129071 (10th Cir. June 14, 2022); *Williams v. Brown*, 567 F. Supp. 3d 1213, 1227 (D. Or. 2021). And the Order survives rational basis review.

The City had a legitimate interest in slowing the spread of COVID-19, *Slidewaters LLC*, 4 F.4th at 758, and "vaccines are a safe and effective way to prevent the spread of COVID-19[,]" *Smith*, 2021 WL 5195688, at *6; *see also Baker*, 567 F. Supp. at 319–20. The Order, by outlining

[9] Plaintiffs contend the vaccines did not prevent transmission of or infection by COVID-19, so do not qualify as "vaccines," and are instead medical treatments. Dkt. 10 ¶¶ 244–46. *See also id.* ¶¶ 64–66 (asserting the CDC changed the definition of vaccine after the COVID-19 vaccines had been manufactured, meaning the new definition cannot apply to the vaccines in question). The Court should disregard such allegations. Plaintiffs' assertion that the vaccines did not slow the spread of COVID-19 is contradicted by judicially noticeable facts. *See, e.g.*, *CDC, Morbidity and Mortality Weekly Report (MMWR)* (Sept. 17, 2021), http://bit.ly/3YQ9tMM. Moreover, Plaintiffs' assertion that the CDC's new definition of "vaccine" cannot apply retroactively to the COVID-19 vaccines is a "conclusory legal assertion" the Court need not accept as true. *Harris*, 2019 WL 5536402, at *2.

SUMMIT LAW GROUP, PLLC
315 FIFTH AVENUE SOUTH, SUITE 1000
SEATTLE, WASHINGTON 98104-2682
Telephone: (206) 676-7000
Fax: (206) 676-7001

pertinent considerations and emphasizing "the efficacy of vaccines," *see* Dkt. 10-1 at 1–2, rationally connected the City's decision to implement the vaccine mandate with its legitimate interest in reducing transmission of the virus. *See Williams*, 567 F. Supp. 3d at 1227. Thus, the Order was rationally related to furthering the City's interest. Plaintiffs' substantive due process claim alleging violations of their right to refuse unwanted medical treatment should be dismissed.

d. Deprivation of the Right of Privacy (Count 8)[10]

Plaintiffs bring a § 1983 claim for "deprivation of the right of privacy," alleging the Order violated their right to informational privacy by requiring them to disclose their private health information. Dkt. 10 ¶¶ 255–59. The Ninth Circuit recognizes an "individual interest in avoiding disclosure of personal matters." *A.C. ex rel. Park v. Cortez*, 34 F.4th 783, 787 (9th Cir. 2022). This right, however, is "a conditional right which may be infringed upon a showing of proper governmental interest." *Id.* at 787. The Ninth Circuit employs a balancing test to determine whether the government's right to infringe outweighs the individual's privacy interest, considering: "(1) the type of information requested, (2) the potential for harm in any subsequent non-consensual disclosure, (3) the adequacy of safeguards to prevent unauthorized disclosure, (4) the degree of need for access, and (5) whether there is an express statutory mandate, articulated public policy, or other recognizable public interest militating toward access." *Id.*

Applying these factors, courts have found actionable violations of privacy rights only where the information that has been disclosed is "inherently sensitive or intimate," and whose disclosure will cause "injury, embarrassment or stigma." *In re Crawford*, 194 F.3d 954, 960 (9th Cir. 1999). "There is no basis to accept an allegation that an individual's vaccination status is 'sensitive or intimate' under this standard, and the alleged circumstances surrounding the disclosure of Plaintiff's vaccination status do not support the inference that it was likely to cause

[10] Plaintiffs do not plead this as a substantive due process claim; however, because they contend they have a Fourteenth Amendment right to privacy, Dkt. 10 ¶ 261, Defendants construe it as such.

SUMMIT LAW GROUP, PLLC
315 FIFTH AVENUE SOUTH, SUITE 1000
SEATTLE, WASHINGTON 98104-2682
Telephone: (206) 676-7000
Fax: (206) 676-7001

'injury, embarrassment, or stigma.'" *Schmidt v. City of Pasadena,* No. LACV2108769JAKJCX, 2024 WL 1640913, at *14 (C.D. Cal. Mar. 21, 2024) (citing *In re Crawford*, 194 F.3d at 960).

Even if vaccination status were sufficiently sensitive to warrant constitutional privacy protections, Defendants sought Plaintiffs' vaccination status in furtherance of the Order, which was enacted to combat COVID-19. "Stemming the spread of COVID–19 is unquestionably a compelling interest." *Roman Catholic Diocese of Brooklyn v. Cuomo*, 592 U.S. 14, 18 (2020). Plaintiffs have not alleged any facts establishing that their privacy interests outweighed Defendants' interest in obtaining this information to stem the spread of the virus, that the collection of this information would have caused Plaintiffs harm, that any safeguards to prevent the disclosure of this information would have been inadequate, or that the degree of Defendants' need to access this information was low. Accordingly, Plaintiffs' claim that Defendants violated their right to informational privacy fails. *See Miller v. Farris*, No. 21-9551-SSS (AS), 2023 WL 4680370, at *5 (C.D. Cal June 14, 2023); *see also Schmidt*, 2024 WL 1640913, at *14 ("A balancing of the relevant factors shows that the alleged disclosure of Plaintiffs' vaccination status does not sufficiently state an impermissible invasion of the right to informational privacy."); *Kheriaty v. Regents of Univ. of California*, No. CV-21-01367-JVS, 2021 WL 4714664, at *6, 9 (C.D. Cal. Sept. 29, 2021) (dismissing, under similar circumstances, the plaintiff's informational privacy claim based on public disclosure of his COVID-19 vaccination status).

3. Plaintiffs Fail to Establish a Procedural Due Process Claim (Count 3).

In asserting that Defendants violated their procedural due process rights, Plaintiffs rely on a myriad of conclusory allegations and on the recitation of legal authority. Dkt. 10 ¶ 201–16. It is not clear which of Defendants' decisions Plaintiffs specifically challenge; they assert, for example, that Defendants terminated their employment and violated their statutory entitlements, and that the Order "was outside of Defendants' authority to act" and required Plaintiffs "to wear PREP Act masks." *Id*. ¶¶ 210, 213, 215. None of these allegations establish a procedural due process claim.

SUMMIT LAW GROUP, PLLC
315 FIFTH AVENUE SOUTH, SUITE 1000
SEATTLE, WASHINGTON 98104-2682
Telephone: (206) 676-7000
Fax: (206) 676-7001

A procedural due process claim requires: (1) a constitutionally protected liberty or property interest; (2) a deprivation of that interest by the government; and (3) a lack of adequate process. *Shanks v. Dressel*, 540 F.3d 1082, 1090 (9th Cir. 2008).

To the extent Plaintiffs allege a protected liberty or property interest in "statutory entitlements" under the FDCA, the EUA Act, or the PREP Act, they fail to invoke a federal right enforceable via the procedural due process clause. *See* Section III.B.1.b, *supra*. To the extent Plaintiffs categorically challenge the Order, broadly alleging a property right to their "continued employment in a [City] job"—the Ninth Circuit has held that "no procedural due process is required beyond the proper promulgation of the new substantive rule." *Bacon v. Woodward*, 22-35611, 2024 WL 3041850, at *2 (9th Cir. June 18, 2024); *see also Pilz v. Inslee*, No. 21-5735-BJR, 2022 WL 1719172, at *7 (W.D. Wash. May 27, 2022), *aff'd*, 22-35508, 2023 WL 8866565 (9th Cir. Dec. 22, 2023) (noting district courts have "rejected procedural due process challenges 'to employer-issued vaccine mandates during the COVID-19 pandemic, finding employees are not entitled to greater service than what is provided by enactment of the mandates themselves.'").

And to the extent Plaintiffs allege their procedural due process rights were violated when they were terminated in accordance with the Order for being unvaccinated, their allegations are insufficient to establish an unconstitutional lack of due process. Where a public employer's policy prohibits the termination of employment without just cause, employment may only be terminated after the employee has received due process of law. *See Blantz v. Cal. Dep't of Corr. & Rehab., Div. of Corr. Health Care Servs.*, 727 F.3d 917, 922 (9th Cir. 2013). Procedural due process requires that a person who is subject to adverse government action receive notice of the charges against him, an explanation of the public entity's evidence, and an opportunity to be heard. *See Cleveland Bd. of Educ. v. Loudermill,* 470 U.S. 532, 546 (1985). The Supreme Court has made clear that when such a hearing is required, it "need not be elaborate." *Id.* at 545.

Vague allegations that a plaintiff was deprived of procedural due process are insufficient to survive a motion to dismiss. *See e.g.*, *Van Den Heuvel v. Dorothy*, No. 2:21-CV-2176-TLN-CKD-

SUMMIT LAW GROUP, PLLC
315 FIFTH AVENUE SOUTH, SUITE 1000
SEATTLE, WASHINGTON 98104-2682
Telephone: (206) 676-7000
Fax: (206) 676-7001

PS, 2022 WL 95237, at *4–5 (E.D. Cal. Jan. 10, 2022) (dismissing procedural due process claim where plaintiff failed to adequately explain what process he was or was not afforded by the defendant either before or after the alleged deprivation); *Lull v. Cnty. of Placer,* No. 217CV2216KJMEFBPS, 2019 WL 4302341, at *5 (E.D. Cal. Sept. 11, 2019), *report and recommendation adopted*, No. 217CV2216KJMEFBPS, 2019 WL 4747647 (E.D. Cal. Sept. 30, 2019) ("vague allegations fail to demonstrate that plaintiff was not provided notice of the abatement proceedings and a meaningful opportunity to be heard"). Instead, a plaintiff "must explain how the available process "fell below the procedural safeguards constitutionally required to protect that interest." *McLaran v. Rakevich*, No. 3:20-CV-05395-JRC, 2021 WL 825378, at *6 (W.D. Wash. Mar. 4, 2021) (citing *Brittain v. Hansen*, 451 F.3d 982, 1000 (9th Cir. 2006)).

Here, Plaintiffs do not allege that they were provided with inadequate notice of the Order's vaccination policy, nor can they. And Plaintiffs' conclusory allegation that they were not provided with a process "to air their complaints," Dkt. 10 ¶ 210, is insufficient as a matter of law to state a procedural due process claim. The Order explicitly provided Plaintiffs with notice of the vaccination requirement and applicable deadlines, as well as the consequences for not meeting the requirement, and informed them that accommodation requests would be evaluated on an individual basis. *See* Dkt. 10-1. The Order thus "created a process by which employees could apply for exemptions and accommodations," *see* Dkt. 10-1 at 4, "and essentially present [their] side of the story to avoid termination," which is "all that [the law] requires[,]" *Pilz*, 2022 WL 1719172, at *7; *see also Vasquez v. City of New York - Off. of Mayor,* No. 22CV05068HGVMS, 2024 WL 1348702, at *11 (E.D.N.Y. Mar. 30, 2024), *reconsideration denied*, No. 22-CV-05068 (HG), 2024 WL 1886656 (E.D.N.Y. Apr. 30, 2024) (dismissing procedural due process challenge where plaintiff availed himself of pre-deprivation reasonable accommodation processes and "he advance[d] no other allegations so as to render those procedures constitutionally suspect.").

SUMMIT LAW GROUP, PLLC
315 FIFTH AVENUE SOUTH, SUITE 1000
SEATTLE, WASHINGTON 98104-2682
Telephone: (206) 676-7000
Fax: (206) 676-7001

4. Plaintiffs' Equal Protection Claim Fails (Count 2).

Plaintiffs assert Defendants violated the Equal Protection Clause of the Fourteenth Amendment by discriminating against "those who chose the option to refuse and not those who chose the option to accept under the EUA Statute and PREP Act" when issuing and enforcing the Order. Dkt. 10 ¶ 193; *see also id.* ¶¶ 194–95 ("Defendants' Policy treated a class of public employees who refused" EUA and PREP Act products differently than those who accepted them).

The Equal Protection Clause "commands that no state shall deny to any person within its jurisdiction the equal protection of the laws, which is essentially a direction that all persons similarly situated should be treated alike." *City of Cleburne*, 473 U.S. at 439 (cleaned up). To prevail on an equal protection claim, a plaintiff must "show that a class that is similarly situated has been treated disparately." *Boardman v. Inslee*, 978 F.3d 1092, 1117 (9th Cir. 2020). If there is no suspect class at issue, a government policy "need only rationally further a legitimate state purpose to be valid." *Minn. State Bd. for Cmty. Colls. v. Knight*, 465 U.S. 271, 291 (1984); *see also Curtis*, 2023 WL 8828753, at *4 (a "class of one" equal protection claim requires plaintiffs to demonstrate Defendants "(1) intentionally (2) treated them differently than other similarly situated groups, (3) without a rational basis."). This test is "functionally the same under substantive due process and the Equal Protection Clause." *Kheriaty*, 2021 WL 4714664, at *7. "Given the standard of review, it should come as no surprise that the Court hardly ever strikes down a policy as illegitimate under rational basis scrutiny." *Trump v. Hawaii*, 585 U.S. 667, 705 (2018).

Plaintiffs do not allege they are members of a suspect class, nor can they. *See Kheriaty*, 2021 WL 4714664, at *7; *Valdez*, 559 F. Supp. 3d at 1178. Accordingly, the Order is subject to rational basis review—which it easily passes. *See* Section III.B.2.c, *supra*. The Court should dismiss Plaintiffs' equal protection claim.

5. Plaintiffs' Unconstitutional Conditions Doctrine Claim Fails (Count 7).

Plaintiffs allege the Order "established an unconstitutional condition because it required Plaintiffs to surrender their Fourteenth Amendment rights . . . as a condition of continued public

SUMMIT LAW GROUP, PLLC
315 FIFTH AVENUE SOUTH, SUITE 1000
SEATTLE, WASHINGTON 98104-2682
Telephone: (206) 676-7000
Fax: (206) 676-7001

employment." Dkt. 10 ¶ 252. But "a government entity does not impose an unconstitutional condition by enforcing a duly enacted, constitutional law." *Burcham v. City of Los Angeles*, 562 F. Supp. 3d 694, 707 n. 4 (C.D. Cal. 2022). And the Supreme Court has "settled that it is within the police power of a state to provide for compulsory vaccination." *Zucht v. King*, 260 U.S. 174, 176 (1922). Because Plaintiffs have not plausibly alleged that the City could not impose a vaccination requirement as part of its police power, they have "failed to allege a required 'predicate' of an unconstitutional conditions claim." *Andre-Rodney v. Hochul*, 618 F. Supp. 3d 72, 85 (N.D.N.Y. 2022); *see also Curtis*, 2024 WL 810503, at *7; *Legaretta v. Macias*, 603 F. Supp. 3d 1050, 1070–71 (D.N.M. 2022) (vaccine mandate "does not violate any of Plaintiffs' fundamental rights[, and w]ithout identifying a fundamental right, Plaintiffs' challenge to the Vaccine Mandate as an unconstitutional condition necessarily fails."); *Smith*, 2021 WL 5195688, at *8 (rejecting Unconstitutional Conditions Claim because plaintiffs are "presented with a choice and are not being coerced to give up a fundamental right since there is no fundamental right to refuse vaccination."). The Court should dismiss Plaintiffs' Unconstitutional Conditions Claim.

6. The City is not Subject to *Monell* Liability (Count 9).

Plaintiffs contend the City is liable under *Monell* for the § 1983 claims alleged. Dkt. 10 ¶¶ 262–88. "A municipality or other local government may be liable under [Section 1983] if the governmental body itself 'subjects' a person to a deprivation of rights or 'causes' a person 'to be subjected' to such deprivation." *Connick v. Thompson*, 563 U.S. 51, 60 (2011) (quoting *Monell*, 436 U.S. at 692). A *Monell* plaintiff must demonstrate that "an official policy, custom, or pattern" on the part of the municipal defendant "was the actionable cause of the claimed injury." *Tsao v. Desert Palace, Inc.*, 698 F.3d 1128, 1143 (9th Cir. 2012). There must be a "direct causal link" between the relevant policy and the deprivation of rights at issue. *Sandoval v. Cnty. of San Diego*, 985 F.3d 657, 681 (9th Cir. 2021). In other words, a predicate for liability under *Monell* is a constitutional injury or other deprivation of rights. As Plaintiffs have failed to adequately allege any such injury, their *Monell* claim should be dismissed.

SUMMIT LAW GROUP, PLLC
315 FIFTH AVENUE SOUTH, SUITE 1000
SEATTLE, WASHINGTON 98104-2682
Telephone: (206) 676-7000
Fax: (206) 676-7001

7. Defendant Fleetwood is Entitled to Qualified Immunity.

Plaintiffs sue Defendant Fleetwood in his individual capacity for actions taken under color of state law. *See* Dkt. 10 ¶ 13.2. Government officials sued in their individual capacity are entitled to qualified immunity "from liability for civil damages insofar as their conduct does not violate clearly established statutory or constitutional rights of which a reasonable person would have known." *Pearson v. Callahan*, 555 U.S. 223, 231 (2009). For a right to be clearly established, "existing precedent must have placed the statutory or constitutional question beyond debate" such that "every reasonable official would have understood that what he is doing violates that right." *Ashcroft v. al-Kidd*, 563 U.S. 731, 741 (2011) (cleaned up). The plaintiff bears the burden of proving that the right allegedly violated was clearly established at the time of the official's allegedly impermissible conduct. *Camarillo v. McCarthy*, 998 F.2d 638, 639 (9th Cir. 1993).

Plaintiffs' § 1983 claims fail to identify any rights purportedly violated by the Order, let alone any rights that were "clearly established at the time of" the Order. *See* Section III.B.1-5, *supra*. The Court should dismiss Plaintiffs' § 1983 claims against Defendant Fleetwood in his individual capacity on qualified immunity grounds. *See Curtis*, 2023 WL 8828753, at *7–*8; *see also Johnson*, 2024 WL 747022, at *3.

C. Plaintiffs' State Law Claims Fail as a Matter of Law.

Plaintiffs' state law claims also fail to state a claim and should be dismissed with prejudice.

1. Plaintiffs' Wrongful Termination Claim Fails (Count 10).

Plaintiffs allege they possessed statutory and fundamental rights to refuse investigational drugs and unwanted medical treatment, and that they were wrongfully terminated in violation of Washington common law when they exercised those rights. Dkt. 10 ¶¶ 289–94.

Under Washington law, employers may not discharge employees for reasons that violate public policy. *Dicomes v. State*, 113 Wn.2d 612, 617, 782 P.2d 1002 (1989). To state a claim, a plaintiff must plead and prove that their termination was motivated by reasons that contravene a clear mandate of public policy, with such claims generally arising when employees are discharged

SUMMIT LAW GROUP, PLLC
315 FIFTH AVENUE SOUTH, SUITE 1000
SEATTLE, WASHINGTON 98104-2682
Telephone: (206) 676-7000
Fax: (206) 676-7001

for (1) refusing to commit illegal acts, (2) performing public duties or obligations, (3) exercising legal rights or privileges, or (4) acting as whistleblowers. *Id.* at 618. When a claim does not fit neatly into one of these categories, courts must determine whether, among other things, a clear mandate of public policy exists and whether discouraging the conduct in which the plaintiff engaged would jeopardize that policy. *See Becker v. Cmty. Health Sys., Inc.*, 184 Wn.2d 252, 259, 359 P.3d 746 (2015) (citing Henry H. Perritt Jr., *Workplace Torts: Rights and Liabilities* (1991)).

Whether a clear mandate of public policy is implicated by a plaintiff's termination is a question of law to be decided by the Court. *See Dicomes*, 113 Wn.2d at 617. In making this determination, courts inquire into whether the employer's conduct contravenes the letter or purpose of a constitutional, statutory, or regulatory provision or scheme. *Becker*, 184 Wn.2d at 258. *See also Sedlacek v. Hillis*, 145 Wn.2d 379, 385, 36 P.3d 1014 (2001) (public policy must be "clearly grounded in legislation or prior jurisprudence in order to protect employers from frivolous lawsuits and to assure balance between the interests of the employer" and those of the employee).

Here, Plaintiffs contend they were discharged for exercising the legal right or privilege to refuse to take an investigational drug or undergo unwanted medical treatment. Dkt. 10 ¶¶ 289–94. As the COVID-19 vaccine qualifies as neither an investigational drug nor as a medical treatment, *see* Section III.B.1.a; III.B.2.c, *supra*, declining the COVID-19 vaccine on these grounds could not have constituted Plaintiffs exercising a legal right or privilege.[11] Moreover, there is no "clear mandate of public policy" that establishes the right to refuse vaccination in the context of workplace vaccines. *Cf. Kheriaty v. Regents of the Univ. of California,* No. 22-55001, 2022 WL 17175070, at *1 (9th Cir. Nov. 23, 2022) (noting that there is no "fundamental right" to be free

[11] And it would be nonsensical to conclude that, in terminating Plaintiffs, Defendants were motivated by Plaintiffs' assertion of a legal right or privilege when the Order established that the consequence of declining the COVID-19 vaccine would be separation from employment. By the very terms of the Order, then, Plaintiffs were separated because they were unvaccinated, not because of any alleged exercise of a perceived legal right not to receive the COVID-19 vaccine. *See Adams v. Confluence Health*, 39615-1-III, 2024 WL 981389, at *2–3 (Wash. Ct. App. Mar. 7, 2024).

SUMMIT LAW GROUP, PLLC
315 FIFTH AVENUE SOUTH, SUITE 1000
SEATTLE, WASHINGTON 98104-2682
Telephone: (206) 676-7000
Fax: (206) 676-7001

from a vaccine mandate in a workplace). Even if there were, Plaintiffs offer only legal conclusions and conclusory allegations to support their claim, *see, e.g.*, Dkt. 10 ¶¶ 290, 292–93, which is insufficient, *Iqbal*, 556 U.S. at 678–79. Their claim should be dismissed.

2. Plaintiffs' Intentional Infliction of Emotional Distress Claim Fails (Count 11).

Plaintiffs bring a claim for intentional infliction of emotional distress, alleging that in enacting the Order, "Defendants engaged in a scorched-earth policy and inflicted, with malicious intent, emotional distress to the fullest extent that one in their positions of authority and power could inflict, all to the detriment of Plaintiffs' emotional well-being." Dkt. 10 ¶ 296.

To prevail on a claim of intentional infliction of emotional distress—or "outrage"—a plaintiff must show (1) extreme and outrageous conduct, (2) intentional or reckless infliction of emotional distress, and (3) actual result to plaintiff of emotional distress. *Lyons v. U.S. Bank Nat'l Ass'n,* 181 Wn.2d 775, 792, 336 P.3d 1142 (2014). A claim for outrage "must be predicated on behavior so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community." *Kloepfel v. Bokor*, 149 Wn.2d 192, 196, 66 P.3d 630 (2003) (cleaned up).

Here, the "properly credited allegations in the Amended Complaint are insufficient from which to conclude that the [Order] was 'beyond all possible bounds of decency' considering the circumstances at the time." *Curtis*, 2023 WL 8828753, at *8. Moreover, federal courts have consistently held that employee COVID-19 vaccination mandates do not give rise to claims for intentional infliction of emotional distress. *See Roberts v. Inslee*, ED Wash. No. 23-0295-TOR, Dkt. 42 at 25–27 (filed Feb. 8, 2024); *Cala v. Moorings Park Cmty Health, Inc.*, No. 22-635-JES-NPM, 2022 WL 17405581, at *5 (M.D. Fla. Dec. 2, 2022), *reconsideration granted*, 2023 WL 1102646 (M.D. Fla. Jan. 30, 2023); *Finkbeiner v. Geisinger Clinic*, No. 21-01903, 2022 WL 3702004, at *7 (M.D. Pa. Aug. 26, 2022); *Cesare v. PACT MSO, LLC*, No. 23-CV-253 (SVN), 2023 WL 5893429, at *5-*6 (D. Conn. Sept. 11, 2023). Plaintiffs' intentional infliction of emotional distress claim should be dismissed.

SUMMIT LAW GROUP, PLLC
315 FIFTH AVENUE SOUTH, SUITE 1000
SEATTLE, WASHINGTON 98104-2682
Telephone: (206) 676-7000
Fax: (206) 676-7001

IV. CONCLUSION

Plaintiffs' federal and state law claims suffer from inherent legal and factual deficiencies and should be dismissed. Because Plaintiffs' claims cannot be cured with re-pleading, dismissal should be with prejudice. *See Khalid v. Microsoft Corp.*, 409 F. Supp. 3d 1023, 1031 (W.D. Wash. 2019) ("where amendment would be futile, a claim is properly dismissed with prejudice."); *Johnson v. American Airlines, Inc.*, 834 F.2d 721, 724 (9th Cir. 1987) ("[F]utility includes the inevitability of a claim's defeat on summary judgment."). In accordance with Section II(C) of the Standing Order, the parties conferred at least three days prior to Defendants' filing this motion.

DATED this 19th day of August, 2024.

Respectfully submitted,

SUMMIT LAW GROUP, PLLC
Attorneys for Defendants

By: *s/ Shannon E. Phillips*
Shannon E. Phillips, WSBA #25631
Jesse L. Taylor, WSBA #51603
Vanessa Williams-Hall, WSBA #54308
shannonp@summitlaw.com
jesset@summitlaw.com
vanessaw@summitlaw.com

SUMMIT LAW GROUP, PLLC
315 FIFTH AVENUE SOUTH, SUITE 1000
SEATTLE, WASHINGTON 98104-2682
Telephone: (206) 676-7000
Fax: (206) 676-7001